



Bill Number: S.B. 1569

Hoffman Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows a special election board (SEB) worker to update necessary voter registration information for the qualified electors that the SEB worker is assigned to assist, in order to ensure that a qualified elector's voter registration information is correct and that the qualified elector receives the correct ballot.
2. Prohibits SEB workers from changing existing voter registrations for any other person at the facility or location.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1569
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-549, Arizona Revised Statutes, is amended to
3 read:

4 16-549. Special election boards; expenses; voting procedure
5 for ill electors or electors with disabilities

6 A. The county recorder or other officer in charge of elections, for
7 the purpose of making it possible for qualified electors who are ill or
8 have a disability to vote, may appoint such number of special election
9 boards as needed. In a partisan election, each such board shall consist
10 of two members, one from each of the two political parties that cast the
11 highest number of votes in the state in the last preceding general
12 election. The county chairman of each such party shall furnish, within
13 sixty days before the election day, the county recorder or other officer
14 in charge of elections with a list of names of qualified electors within
15 the chairman's political party, and such additional lists as may be
16 required, from which the county recorder or other officer in charge of
17 elections shall appoint members to such special election boards. The
18 county recorder or other officer in charge of elections may refuse for
19 cause to appoint or may for cause remove a member of this board. A person
20 who is a candidate for an office other than precinct committeeman is not
21 eligible to serve on the special election board for that election.

22 B. Members of special election boards appointed under this section
23 shall be reimbursed for travel expenses in the manner provided by law and
24 shall also receive such compensation as the board of supervisors or the

1 governing body prescribes, all of which shall be paid by the county or
2 other political subdivision.

3 C. In lieu of the mailed early ballot procedure, any qualified
4 elector who is confined as the result of a continuing illness or physical
5 disability and is, therefore, not able to go to the polls on the day of
6 the next election and who does not wish to vote by the mailed early ballot
7 procedure, may make a verbal or a signed written request to the county
8 recorder or other officer in charge of elections to have a ballot
9 personally delivered to the elector by the special election board at the
10 elector's place of confinement within the county or other political
11 subdivision. The ballot shall be delivered to the elector in person by a
12 special election board as provided in this section. Such requests must be
13 made by 5:00 p.m. on the second Friday before the election.

14 D. Qualified electors who become ill or become a person with a
15 disability after the second Friday before the election may nevertheless
16 request personal ballot delivery pursuant to this section, and the county
17 recorder or other officer in charge of elections shall when possible honor
18 such requests up to and including the last day before the election.
19 Qualified electors who are admitted to a hospital after 5:00 p.m. on the
20 second Friday preceding the election and before 5:00 p.m. on election day
21 may request the county recorder or other officer in charge of elections to
22 provide a special election board with a ballot at the elector's place of
23 confinement. If the county recorder or other officer in charge of
24 elections is able to accommodate the request, the voted ballot of the
25 elector shall be sealed in an envelope and shall be processed as a
26 provisional ballot pursuant to section 16-584. Before receiving a ballot
27 pursuant to this subsection, a qualified elector shall provide
28 identification as prescribed in section 16-579 and shall sign a statement
29 under penalty of perjury that states that the person is experiencing or
30 experienced an emergency after 5:00 p.m. on the second Friday preceding
31 the election and before 5:00 p.m. on the Monday immediately preceding the
32 election that would prevent the person from voting at the polls. Signed
33 statements received pursuant to this subsection are not subject to
34 inspection pursuant to title 39, chapter 1, article 2.

35 E. The manner and procedure of voting shall be as provided in
36 section 16-548, except that the marked ballot in the sealed envelope shall
37 be handed by the elector to the special election board and shall be

1 delivered by the board to the county recorder or other officer in charge
2 of elections.

3 F. [IN ORDER TO ENSURE THAT A QUALIFIED ELECTOR'S VOTER
4 REGISTRATION INFORMATION IS CORRECT AND THAT THE QUALIFIED ELECTOR
5 RECEIVES THE CORRECT BALLOT.] A SPECIAL ELECTION BOARD MEMBER [MAY UPDATE
6 ANY NECESSARY VOTER REGISTRATION INFORMATION FOR THE QUALIFIED ELECTORS
7 THAT THE SPECIAL ELECTION BOARD IS ASSIGNED TO ASSIST. A SPECIAL ELECTION
8 BOARD MEMBER] SHALL NOT COLLECT, PROCESS OR OTHERWISE FACILITATE A [NEW]
9 VOTER REGISTRATION [OR CHANGE AN EXISTING VOTER REGISTRATION FOR ANY OTHER
10 PERSON AT THAT FACILITY OR LOCATION] WHILE ACTING FOR OR ON BEHALF OF THE
11 COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS.

12 Enroll and engross to conform

13 Amend title to conform

JAKE HOFFMAN

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